

ORIGINAL

(S E R V E D)
(JUNE 5, 1992)
(FEDERAL MARITIME COMMISSION)

FEDERAL MARITIME COMMISSION

WASHINGTON, D. C.

June 5, 1992

DOCKET NO. 89-26

THE GOVERNMENT OF THE TERRITORY OF GUAM, ET AL.

v.

SEA-LAND SERVICE, INC. AND
AMERICAN PRESIDENT LINES, LTD.

**RESPONDENTS' MOTION TO EXCLUDE PORTIONS
OF COMPLAINANTS' DIRECT CASE HELD IN ABEYANCE
PENDING PREHEARING CONFERENCE**

Respondents American President Lines, Ltd. (APL) and Sea-Land Service, Inc. (Sea-Land) request an order excluding from the evidentiary record certain portions of the complainants' (GovGuam) written direct case. In particular, respondents request a finding that:

1. Complainants' 95-page memorandum submitted as Volume I of complainants' written direct case is not evidentiary in nature and that, therefore, it is not admissible into the evidentiary record;

2. Exhibits G-51 and 52 to Volume I of complainants' written direct case do not meet threshold requirements for admissibility into the evidentiary record and that admission of these exhibits as offered would deny respondents a fair hearing and that, therefore, these exhibits are not admissible into the evidentiary record.

Complainants replied on May 29, 1992.

A question has now arisen as to the agreed-upon schedules and procedures that have governed this proceeding. In particular the question relates to the meaning of the following: "The pre-hearing filings include written testimony and workpapers for all witnesses except hostile or rebuttal witnesses or with respect to redirect examination of any witnesses." Complainants went on to state that they fully intend to identify each witness before the hearing, as well as to "sponsor" via witnesses all factual submissions that require it.

Respondents state that they are particularly concerned that GovGuam could be advocating for the first time a procedural regime that will enable complainants to elaborate upon existing testimony or to improvise additions to their direct case in the form of written or oral testimony not heretofore submitted.

On Tuesday, June 2, 1992, respondents requested a prehearing conference¹ no later than Tuesday, June 9, 1992, to resolve the following issue they pose:

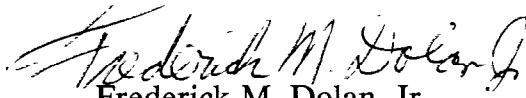
whether GovGuam's obligation to submit its "entire direct case" and "written testimony and work papers for all witnesses except hostile or rebuttal witnesses" [emphasis added] permits GovGuam at a later date to supplement its written direct case.

¹They also requested that such a prehearing conference should precede disposition of the respondents' motion.

Our mutual schedules are conflicting and do not permit convening the requested oral prehearing conference before June 9th. A telephonic conference was conducted on June 3rd to determine an alternate solution.

The procedural agreement reached at that conference is as follows:

1. Complainants and respondents will meet on Friday, June 5, to attempt to resolve their differences concerning interpretation of the schedule for this proceeding.
2. In the event that full agreement is not reached at Friday's meeting, complainants and respondents will simultaneously prepare memoranda addressing their remaining disagreements concerning the schedule. These memoranda will be filed on or before Monday, June 15, 1992.
3. A prehearing conference will be held on the record, on Monday, June 22, 1992, at 10:00 a.m. in Hearing Room No. 1, First Floor Lobby, 1100 L Street, N.W., Washington, D.C., to discuss issues raised in the memoranda to be submitted pursuant to item 2 above.


Frederick M. Dolan, Jr.
Administrative Law Judge